

**JUSTIFICATION FOR EXCEPTION TO FAIR OPPORUNITY
FOR A MULTIPLE AWARD CONTRACT ORDER (MAC)
below the Simplified Acquisition Threshold (SAT)**

1. IDENTIFICATION OF AGENCY AND CONTRACTING ACTIVITY: This is a Limited Source Justification. The requiring activity is the Aviation Integration Directorate (AID). The contracting activity is the Army Contracting Command – Redstone Arsenal (ACC-RSA) (CCAM-MZD-B).

2. NATURE/DESCRIPTION OF CONTRACT ACTION: This acquisition is conducted under the authority of 10 U.S.C. 2304a through 2304d. This is a limited source action to be awarded as a new task order to the large business identified in paragraph 3 below. The placement of a firm, fixed price order is anticipated.

3. DESCRIPTION OF REQUIRED SUPPLIES/SERVICES: The proposed acquisition is to provide AID's Smart Phone service for its operations both within the continental United States (CONUS) and outside CONUS (OCONUS). It is intended to acquire Smart Phones that are used to communicate with the office and personnel while TDY/OCONUS and CONUS. Devices used to read e-mail, send e-mail, etc. The anticipated periods of performance consist of a base year (12 Months) commencing on 3 May 2025 with two option years. The only company able to offer the requisite coverage is Cellco Partnership doing business as Verizon Wireless, One Verizon Way, Basking Ridge, NJ 07920-1025. The estimated value is as follows:

Year	Period of Performance	Estimated Price
Base	3 May 2025 – 2 May 2026	
Option Year 1	3 May 2026 – 2 May 2027	
Option Year 2	3 May 2027 – 2 May 2028	
TOTAL		

4. IDENTIFICATION OF THE JUSTIFICATION RATIONALE AND/OR DEMONSTRATION OF CONTRACTOR'S UNIQUE QUALIFICATIONS: The statutory authority which permits not providing each awardee a fair opportunity to be considered for each order exceeding \$10,000 issued under a multiple award contract is 10 U.S.C. 2304c, as implemented by FAR 16.505(b)(2) and, for orders exceeding \$250,000, DFARS 216.505-70(b)(2).

a. The reason for purchasing this service is that it provides needed communications to ensure mission critical support to the Force Protection is sustained without service interruption. Services under this procurement cover usage in the 50 United States and OCONUS for members and employees. It is beneficial to the Army, because it enhances mobility and agility of the work force, strengthens the communications between supervisors and their teams, and improves mission effectiveness.

b. The reason for not providing a fair opportunity to all awardees is that only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

Specifically, the Fort Eustis facilities are uniquely challenged by older buildings comprised of both asbestos-filled walls and lead-based paint that creates a barrier for cellular signals and by locations that are subject to signal disruption from exterior electronic sources. In 2021, an evaluation of the signal strength of the various cellular services from different providers was performed. The signal strength provided by Verizon was consistently greater than those of the other providers. Additionally, the personnel travel to remote areas of the country where Verizon is better able to provide reliable coverage. All awardees were given a fair opportunity to be considered under the order awarded in May 2023. While the other Multiple Award contract holders offer cellular service, those services were found to still be unable to meet the Government's requirements for full coverage at the Fort Eustis locations and the remote locations where the workforce is required to travel in the performance of the mission.

5. DETERMINATION OF THE BEST VALUE: The Spiral 4 contract established the prices for the service to be fair and reasonable. The ACC-RSA Contracting Officer will determine, using the procedures in FAR 15.4, that the order represents the best value to meet the Government's needs.

6. DESCRIPTION OF MARKET RESEARCH: The requiring activity and contracting activity have conducted market research among the multiple award contractors. A Market Research Report and Commerciality Determination was prepared and approved in April 2025. The research found that the Army FAR Supplement (AFARS) Appendix EE Chapter 9 Part 5 requires the use of the Navy Spiral III IDIQ contract. The requiring activity certifies that the requirement can be met by a commercial item and provides supporting documentation which is attached.

7. ANY OTHER SUPPORTING FACTS: This procurement uses a MAC and will be solicited and awarded in accordance with FAR Subpart 16.5.

8. ACTIONS TAKEN TO REMOVE BARRIERS TO COMPETITION: All future requirements will be handled on a case-by-case basis.

9. CONTRACTING OFFICE POINT OF CONTACT: The point of contact is:

Contracting Office: CCAM-MZD-B

Name: [REDACTED]

Telephone Number: [REDACTED]

E-Mail Address: [REDACTED]

10. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature: _____
Typed Name: _____

Date: _____
Title: Logistics Lead

12. Contracting Officer Certification and Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. Most of the pricing is already negotiated. The special services rates will be compared to those on the preceding order. Certified cost or pricing data is not required per FAR 15.403-1(b)(3). I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: _____
Typed Name: _____
Approval

Date: _____
Title: Contracting Office

Based on the foregoing justification, I hereby approve the procurement of (state equipment/services being procured and total dollar value) on an other than full and open competition basis pursuant to the authority of 41 U.S.C. 1901 as implemented by FAR 13.501, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

Date:

Signature

Contracting Office